

2.22 RETENTION OF AFFORDABLE RENTAL HOUSING

When a development site contains an existing residential flat building or an existing boarding house Chapter 2 Part 3 of the *State Environmental Planning Policy (Housing) 2021* (Housing SEPP) is relevant for consideration.

Objective

- (a) To ensure that applicable Development Applications can be accurately assessed under the Housing SEPP.

Controls

- (a) When a development site contains an existing residential flat building or an existing boarding house, the Statement of Environmental Effects report submitted with a DA is to include an assessment against Chapter 2 Part 3 of the Housing SEPP.
- (b) Where 5-years' worth (counted back from the date of lodgement) of rental data is provided by the applicant to confirm whether a dwelling is or is not a low-rental dwelling as defined by the Housing SEPP, the data should be provided in one of the following two ways:
 - a. Executed leases and rental increase or decrease letters; or
 - b. Information from the leasing agent accompanied by an executed statutory declaration.

Without rental data being provided in one of these two forms it will be assumed that the dwellings without such data are low-rental, as it cannot be reliably proven otherwise.

Where a dwelling is identified by the applicant as being owner-occupied for all or some of the 5-year period, a statutory declaration confirming such as well as a copy of a utility bill from every 6 months that the dwelling was owner-occupied should be provided.

Where Council are not satisfied with the rental data, further information may be requested.

- (c) Affordable housing provided under the Housing SEPP in relation to the in-fill FSR bonuses is not considered to offset the loss of existing low rental units as described in the Housing SEPP by the proposal.